

24AVCV00921 24AVCV00921

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Case Number: 24AVCV00921 Hearing Date: July 28, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

JUAN MILLAN HERRERA,

Plaintiff,

v.

FCA US LLC, a Delaware Limited Liability Company; SAN FERNANDO MOTOR COMPANY, a California Stock Corporation dba Rydell Chrysler Dodge Jeep RAM; and DOES 1 through 10, inclusive,

Defendants.

Case Number 24AVCV00921

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: July 28, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is an action for violation of the Song-Beverly Consumer Warranty Act (Song-Beverly Act) arising from Plaintiff Juan Millan Herrera's (Plaintiff) purchase of a vehicle from Defendants.

On July 30, 2024, Plaintiff filed a complaint against Defendants FCA US LLC (FCA), San Fernando Motor Company dba Rydell Chrysler Dodge Jeep RAM (Rydell) (together Defendants), and DOEs 1 through 10, asserting two causes of action for (1) violation of the Song-Beverly Act for breach of express warranty, and (2) negligent repair.

Specifically, Plaintiff alleges that on October 18, 2019, he entered into a contract warranty with FCA regarding a 2020 Jeep Wrangler (Vehicle), which Plaintiff purchased for \$61,500.00. (Compl., ¶ 16.) Plaintiff claims that defects and nonconformities to warranty manifested within the applicable express warranty period which substantially impaired the use, value, and safety of the Vehicle. (Compl., ¶ 17.)

On September 11, 2024, Defendants filed their respective answers to the complaint.

On October 14, 2025, three days before trial, Plaintiff filed a notice of conditional settlement of the entire case.

On October 16, 2025, the Court set an Order to Show Cause (OSC) re dismissal on December 15, 2025.

On December 15, 2025, the Court continued the OSC re dismissal to April 6, 2026 after conferring with counsel.

On March 16, 2026, Plaintiff filed the present motion for attorney's fees and a memorandum of costs.

On April 6, 2026, the Court continued the OSC re dismissal to July 28, 2026 after conferring with counsel.

The present motion for attorney's fees is unopposed.

II. Legal Standard

Standard for Motion for Attorney's Fees, Costs, and Expenses – Under Civil Code section 1794, subdivision (d), the prevailing buyer under the Song-Beverly Consumer Warranty Act is entitled to fees that were reasonably incurred: "If the buyer prevails under this section, the buyer shall be allowed by the Court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d).) The trial court has an obligation to award only those attorneys' fees that are reasonable. (See *PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095-96; see also *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) A prevailing party includes the party with a net monetary recovery in settlement of the case. (Code Civ. Proc., § 1032, subd. (a)(4).)

The lodestar method is the primary method for determining a reasonable attorney fee award under section 1794, subdivision (d). (*Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, 818-19.) "A trial court assessing attorney fees begins with a touchstone or lodestar figure, based on the careful compilation of the time spent and reasonable hourly compensation of each attorney involved in the presentation of the case." (*Christian Research Institute v. Alnor* (2008) 165 Cal.App.4th 1315, 1321 [internal quotations omitted].) "The reasonableness of attorney fees is within the

discretion of the trial court, to be determined from a consideration of such factors as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. [Citation.] The court may also consider whether the amount requested is based upon unnecessary or duplicative work." (Wilkerson v. Sullivan (2002) 99 Cal.App.4th 443, 448 (citations omitted).) "The basis for the trial court's calculation must be the actual hours counsel has devoted to the case, less those that result from inefficient or duplicative use of time." (Horsford v. Board of Trustees Of California State University (2005) 132 Cal.App.4th 359, 395.) "The law is clear, however, that an award of attorney fees may be based on counsel's declarations, without production of detailed time records." (Raining Data Corp. v. Barrenechea (2009) 175 Cal.App.4th 1363, 1375.)

In setting the hourly rate for an attorney fees award, courts are entitled to consider the rate of "fees customarily charged by that attorney and others in the community for similar work." (Bihun v. AT&T Information Systems, Inc. (1993) 13 Cal. App. 4th 976, 997 [affirming rate of \$450 per hour], overruled on other grounds by Lakin v. Watkins Associated Indus. (1993) 6 Cal. 4th 644, 664; see also Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 1009 ["[R]ate determinations in other cases, particularly those setting a rate for the plaintiffs' attorney, are satisfactory evidence of the prevailing market rate."].)

III. Discussion

Application – Plaintiff requests an order for attorney's fees, costs, and expenses amounting to \$40,683.73 pursuant to a signed California Code of Civil Procedure section 998 Offer of Compromise (998 Offer), the Song-Beverly Consumer Warranty Act, California Civil Code section 1794, subdivision (d), and calculated using the lodestar formula. (Motion, p. 2:26-28, 4:3-5; Notice of Motion, p. 2:4-8.) This total is comprised of (1) \$20,848.50 for attorney's fees, (2) \$10,424.25 for an enhancement of attorney's fees by a multiplier of 1.5, and (3) \$9,410.98 for costs and expenses. (Notice of Motion, p. 2:9-12.)

a. Entitlement to Attorney's Fees, Costs, and Expenses

Here, there is no dispute that Plaintiff is the prevailing party to this litigation, nor that he is entitled to recover reasonable attorney's fees, costs, and expenses incurred in litigation. The 998 Offer establishes that Plaintiffs accepted the offer, which states, in relevant part:

"Defendant [FCA] shall pay attorney fees, costs, and expenses actually expended and reasonably incurred in the commencement and prosecution of this action, including post-offer acceptance attorney fees, costs, and expenses incurred in performing on the settlement and/or completing the case, pursuant to Civil Code section 1794(d), which may be resolved by agreement of the parties or, if the parties cannot agree, upon properly noticed motion to the Court. If a motion is needed, Plaintiff's shall be deemed the prevailing party in this action under section 1794(d). Defendant shall not object to the filing of a motion for attorney fees at the same time as the filing of a memorandum of cost in one consolidated motion rather than by filing a separate cost memorandum."

(Kirnos Decl., Ex. C, ¶ 2.)

Where an accepted 998 Offer designates the Plaintiffs as the prevailing party and specifically delegated determination of fees to the Court, it thereby entitles the Plaintiffs to bring the subject motion. (Engle v. Copenbarger & Copenbarger, LLP (2007) 157 Cal.App.4th 165, 168-69.)

b. Reasonableness of Attorney's Fees Amount Requested

As discussed, the standard method for calculating reasonable attorney's fees is the lodestar method, which determines recoverable fees by multiplying the reasonable hourly rate of the attorneys by the reasonable number of hours billed for the work performed.

i. Reasonableness of Attorneys' Hourly Rates

The Declaration of Roger Kirnos of Knight Law Group, LLP (Knight) sets forth the autobiographies and hourly rates of six Knight timekeepers who worked on the present case. Their roles, hourly rates, and identifying billing codes are as follows:

1. Roger Kirnos (RK), managing partner, admitted to California State Bar in 2012, \$600/hr.
2. Armando Lopez (AL), associate attorney, admitted to admitted to California State Bar in 2018, \$400/hr., later increased to \$450/hr.
3. Colby Meagle (CAM), associate attorney, admitted to California State Bar in 2019, \$400/hr.
4. Heidi Alexander (HA), associate attorney, admitted to California State Bar in 2017, \$395/hr.
5. Sundeep Samra (SS), partner, admitted to California State Bar in 2018, \$500/hr.
6. Zachary Powell (ZP), senior attorney, admitted to California State Bar in 2015, \$425/hr., later increased to \$475/hr.

(Karnos Decl., ¶ 23, 27-28, Ex. A.)

Plaintiff's counsel Kirnos provides the billing procedures, accolades, and notable published and unpublished case law for Knight, including the firm's appellate case work. (Kinos Decl., ¶¶ 17-22, 25.) Kirnos also provides a plethora of case law establishing other courts' acceptance of hourly rates of attorneys who have worked on similar Song-Beverly Actions for reference of the general community rates for similar work. (Karnos Decl., ¶ 29, Exs. D - FF.)

FCA has not opposed this motion, and thus does not argue that any of these rates are unreasonable or should be reduced. As the issue of rate reasonableness is uncontested, the Court accepts the rates for the purposes of this motion. This ruling should not be construed by any other court that this Court has found, after a disputed adjudication, that Plaintiff's counsel's rates are reasonable.

Accordingly, the rates requested for the billing attorneys and paralegals are accepted as requested.

ii. Reasonableness of Hours Billed

Plaintiff's counsel argues they reasonably spent 45.0 hours in prosecuting this action from retention through settlement, including the 2.4 hours incurred in preparing the present motion, and 4.0 hours anticipated for reviewing Defendants' opposition (1.0), drafting a reply (2.0), and preparing for and remotely appearing at the hearing on the present motion (1.0).

The prevailing party has the burden of showing that the requested attorney fees were "reasonably necessary to the conduct of the litigation, and were reasonable in amount." (Robertson, supra, 144 Cal.App.4th at 817.) The party seeking attorney fees "'is not necessarily entitled to compensation for the value of attorney services according to [his] own notion or to the full

extent claimed by [him].” (Levy v. Toyota Motor Sales, USA, Inc. (1992) 4 Cal.App.4th 807, 816.) Therefore, if the “time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount.” (Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th 99, 104.)

The detailed billing records Plaintiff has submitted “are entitled to credence in the absence of a clear indication the records are erroneous.” (Horsford, supra, 132 Cal.App.4th at p. 396.) On presentation of a detailed fee bill, accompanied by a sworn affidavit as to the accuracy of the fee bill, the bill is presumed credible, and the court must use these records as a starting point for its lodestar determination. (Id at 396-97.)

Here, FCA has not opposed this fee motion and thus, has not challenged the reasonableness of the hours billed in prosecuting this action. Further, Plaintiff has submitted detailed billing records attached to a sworn affidavit of Kirnos. (Kirnos Decl., ¶¶ 1, p. 18:3-8, Ex. A.) However, this does not entitle Plaintiff to all fees requested, and the Court must review the billing statements prior to granting an award of fees and costs.

Upon review of the billing records, the Court finds most of Plaintiff’s counsel’s billing reasonable. From June 14, 2024 through March 8, 2026, Plaintiff’s counsel billed for work done on the case including drafting case management statements, corresponding with opposing counsel, drafting discovery and supplementary responses to FCA and Rydell, preparing for, taking, and defending depositions involving numerous witnesses and experts, review of discovery production, preparing and objecting to motions in limine, preparing trial documents, objecting to deposition notices, court appearances, and drafting the present motion. (Kirnos Decl., Ex. B.)

However, the Court strikes the following entries as excessive, clerical in nature, or unnecessary:

1. \$39.50 billed on September 17, 2024 – 0.1 hour billed by HA at \$395/hr. for “met and conferred with assistant re: status of outstanding client paperwork, and directed next steps for client communication”
2. \$400 billed on November 27, 2024 – 1.0 hour billed by CAM at \$400/hr. for “Draft and revise meet and confer letter to opposing counsel regarding discovery” – duplicative (see time entry on November 18, 2024)
3. \$310 billed on December 18, 2024 (\$40), January 8, 2025 (\$90), March 26, 2025 (\$135), and April 30, 2025 (\$45) – 0.1 hour billed by AL at \$400/hr. and 0.6 hour billed by AL at \$450/hr. for “Look into status of discovery” and “Look into status of written discovery”
4. \$95 billed on September 12, 2025 – 0.2 billed by ZP at \$475/hr. for “Reviewed trial management order and edited deadlines in calendar based on local rules.” – The Court notes this entry is secretarial in nature (See Missouri v. Jenkins (1989) 491 U.S. 274, 288 n.10.)
5. \$2,897.50 billed on October 8, 2025 – 6.1 hours billed by ZP at \$475/hr. for “Travel time from court back home from FSC hearing.” FCA should not have to pay travel time just because Plaintiff retained a counsel who lives far from the courthouse that Plaintiff chose for this lawsuit.
6. \$1,000 TBD by SS at \$500/hr. for “Draft Reply to Opposition to Motion for Attorney’s Fees, Costs and Expenses (Anticipated)” – The Court notes that this is reasonable, but unnecessary as no opposition has been filed.
7. \$500 TBD by SS at \$500/hr. for “Review and analyze Defendant’s Opposition (Anticipated)” – The Court notes that this is reasonable, but unnecessary as no opposition has been filed.

Accordingly, aside from the entries specifically identified above as being stricken, the Court finds these billing entries reasonably and necessarily incurred in litigation absent any evidence from Defendants to the contrary.

iii. Lodestar Calculation

Based on the foregoing, the Court calculates the amount of reasonable attorney's fees Plaintiff is entitled to recover by multiplying the number of reasonably billed hours for work on this case by the reasonable hourly rate of the billing attorneys.

From Plaintiff's \$20,848.50 attorney's fee request, the Court strikes the above-detailed costs in the amount of \$5,242.00.

Accordingly, Plaintiff's counsel is entitled to recover \$15,606.50 in attorney's fees.

c. Fee Multiplier

Plaintiff requests a fee multiplier of 1.5 to the lodestar amount given that Plaintiff's counsel took this case on a contingency-basis, the risk associated therewith, and the substantial delay in payment. (Motion, p. 12:18-13:1; Kirnos Decl., ¶ 3.)

Once the Court has determined an appropriate lodestar figure, the court may then determine whether that figure should be adjusted with a positive or negative multiplier. (*Graham v. DaimlerChrysler Corp.*, (2005) 34 Cal.4th 553, 582.) Whether a multiplier or negative multiple is appropriate depends on several factors, including (1) the risks presented by the litigation; (2) the novelty and difficulty of the legal and factual issues involved; (3) the results obtained on behalf of the plaintiff; (4) the skill exhibited by counsel; (5) the extent to which the nature of the litigation precluded other employment by the attorneys; and (6) the contingent nature of the fee award based on the uncertainty of prevailing on the merits and of establishing eligibility for the award. (*Consumer Privacy Cases*, (2009) 175 Cal.App.4th 545, 556; *Robertson*, supra, 144 Cal.App.4th at 819.) "The 'results obtained' factor can properly be used to enhance a lodestar calculation where [1] an exceptional effort produced [2] an exceptional benefit." (*Graham* supra, 34 Cal.4th at 582.)

The Court finds that a multiplier is not warranted in this case. While Plaintiff received an excellent result in settlement, and while Plaintiffs' counsel took this case on contingency, this is a standard Song-Beverly action. While the Court acknowledges that there is inherent risk in taking a case on contingency, the Court finds the risk in this action to be minimal considering a prevailing buyer in a Song-Beverly action is legally entitled to recovery of all reasonable and necessary attorney's fees, costs, and expenses incurred pursuant to Code of Civil Procedure section 1794, subdivision (d). Based on the record and moving papers filed for the present motion, the Court does not find the novelty or difficulty of the legal and factual issues involved, nor the skill required of Plaintiffs' counsel in this case, rising to the level of warranting a multiplier. Furthermore, there is no evidence presented or argument raised that this case precluded Plaintiffs' counsel from taking on other employment.

Accordingly, Plaintiffs' request for a fee multiplier is DENIED.

d. Costs and Expenses

Plaintiff requests costs and expenses totaling \$9,410.98 in costs and expenses, which includes \$4,939.65 for deposition costs for four depositions, and \$2,222.50 in expert witness fees. (Memorandum of Costs, p. 1; Motion, p. 2:14-15; RK Decl., ¶ 2.)

"Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Code Civ. Proc., § 1032, subd. (b).) "Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (Code Civ. Proc., § 1033.5, subd. (c)(2).) "If the

items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary." (Ladas v. California State Auto. Assn. (1993) 19 Cal. App. 4th 761, 774.) "On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs." (Ibid.)

"A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case." (Cal. Rules of Court, rule 3.1700(a)(1).) "Any notice of motion to strike or tax costs must be served and filed 15 days after service of the cost memorandum." (Cal. Rules of Court, rule 3.1700(b)(1).)

To start, the Court must permit the prevailing buyer to recover such costs and expenses if reasonably incurred by the buyer in connection with the commencement and prosecution of the action. (Civ. Code, § 1794, subd. (d).) The party filing a memorandum of costs is not required to attach any supporting documents. (Jones v. Dumrichob (1998) 63 Cal.App.4th 1258, 1267.) "[A] verified memorandum of costs is prima facie evidence of the propriety of the items listed on it, and the burden is on the party challenging these costs to demonstrate that they were not reasonable or necessary." (Bender v. County of Los Angeles (2013) 217 Cal.App.4th 968, 989, internal citations omitted; see also Benach v. County of Los Angeles (2007) 149 Cal.App.4th 836, 855; Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131-132 ["trial court erred in requiring additional proof from" the party claiming costs when party opposing costs bore the burden of proving the cost unnecessary or unreasonable]; Santantonio v. Westinghouse Broadcasting Co. (1994) 25 Cal.App.4th 102, 116, 121 ["where a party shows a prima facie entitlement to costs, the burden is on an objector to prove the costs should be disallowed"].) The burden is on the party opposing the memorandum to either (a) show that the request is facially improper or (b) produce some evidence to show that the request is improper. (Bender, supra, 217 Cal.App.4th at 989.)

Upon review of Plaintiff's Memorandum of Costs, filed concurrently with the present motion, and considering that the case settled only three days prior to the commencement of a jury trial in this action, the Court finds that Plaintiff has satisfied his burden of making a prima facie showing that the costs and expenses requested are reasonable and necessarily incurred in the pendency of this litigation. Thus, the burden is on Defendants to show that the costs included on Plaintiffs' Memorandums of Costs are unreasonable. Neither Defendant has opposed this motion nor provided evidence that any of these fees or costs are unreasonable.

Therefore, the Court grants the total requested amount for costs and expenses incurred in this action.

Accordingly, Plaintiff's counsel's request for attorney's fees, costs, and expenses incurred in prosecuting this litigation is GRANTED in the total amount of \$25,017.48, consisting of \$15,606.50 in attorney's fees and \$9,410.98 in costs and expenses.

IV. Conclusion

Plaintiff Juan Millan Herrera's unopposed Motion for Attorney's Fees, Costs, and Expenses is GRANTED in the amount of \$25,017.48.